

|    |                                                                                             |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
|----|---------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|    |                                                                                             | <p>counsel for Defendant shall file and serve a status update, not to exceed two pages, describing the parties' meet and confer attempts and stating whether the motion should remain on calendar. The parties are encouraged to resolve this issue informally if possible.</p> <p><b>Tentative Ruling:</b> Defendant Kia America, Inc.'s Demurrer to Plaintiff's Complaint is CONTINUED to 6/15/26 in this Department.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 14 | <p><b>Plane Fetch LLC vs. Firm Foundation Aviation, LLC</b></p> <p><b>2025-01457617</b></p> | <p><b>Motion for Continuance of Trial</b></p> <p>Defendant moves to continue trial in this action pursuant to California Rules of Court, rule 3.1332.</p> <p>"To ensure the prompt disposition of civil cases, the dates assigned for a trial are firm. All parties and their counsel must regard the date set for trial as certain." (Cal. Rules of Ct., rule 3.1332(a).)</p> <p>"Although continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance . . . ." (Cal. Rules of Ct., rule 3.1332(c).)</p> <p>"In ruling on a motion or application for continuance, the court must consider all the facts and circumstances that are relevant to the determination. These may include: . . . [¶] (10) Whether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and [¶] (11) Any other fact or circumstance relevant to the fair determination of the motion or application." (Cal. Rules of Ct., rule 3.1332(d).)</p> <p>The court finds good cause exists to continue trial, which is currently set for 8/03/26. A Motion to Consolidate is scheduled to be heard on 9/9/26, in department N18 to consolidate this action with Case No. 30 2025-01457567-CU-BC-NJC. If that motion is granted, this case will be transferred to department N18 and no further action will be required from this Court.</p> <p><b>Tentative Ruling:</b> Defendant Firm Foundation Aviation, LLC dba Foundation Aviation's Motion for Continuance of Trial is GRANTED.</p> |

|    |                                                                               |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
|----|-------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 15 | <p><b>The Mutual Group vs. Downie-Economy</b></p> <p><b>2025-01476648</b></p> | <p><b>Demurrer to Amended Complaint</b></p> <p>Defendant Leigh Ann Downie-Economy’s Demurs to Plaintiff’s First Amended Complaint</p> <p><u><i>Timeliness of opposition</i></u></p> <p>Plaintiff’s opposition was untimely as it was filed on 4/1/26 and served 3/31/26, but due on 3/30/26 pursuant to Code of Civil Procedure section 1005, subdivision (b).</p> <p>The court has discretion to accept or reject late-filed or served papers. (See Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker (2016) 2 Cal.App.5th 252, 262 [citing to Cal. Rules of Court, rule 3.1300, subd. (d)]; Bozzi v. Nordstrom, Inc. (2010) 186 Cal.App.4th 755, 765 [citations omitted].)</p> <p>As Defendant has filed a reply addressing the merits of the opposition and made no objection based on timeliness. Therefore, the Court will consider the late-filed opposition.</p> <p><u><i>First cause of action for fraud</i></u></p> <p>“The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (Lazar v. Superior Court (1996) 12 Cal.4th 631, 638 [citation omitted].)</p> <p>Fraud must be pleaded with specificity. (Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828, 843-844 [citation omitted]. This requires a plaintiff to plead facts showing “how, when, where, to whom, and by what means” any representations were made. (Alfaro v. Community Housing Improvement System &amp; Planning Assn., Inc. (2009) 171 Cal.App.4th 1356, 1384 [citation omitted].)</p> <p>Plaintiff alleges:</p> <ul style="list-style-type: none"> <li>- From 4/1/23 and 4/1/24, Plaintiff, then known as GuideOne Insurance Company, issued a policy of insurance to Christ Lutheran Church (Insured) for coverage of, among other things, employee theft. (FAC ¶ 8.)</li> </ul> |
|----|-------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|